

1 ENGROSSED HOUSE
2 BILL NO. 4341

By: Moore of the House

3 and

4 Gollihare of the Senate

5
6 An Act relating to children; amending 10A O.S. 2021,
7 Section 1-8-102, as amended by Section 1, Chapter
8 310, O.S.L. 2022 (10A O.S. Supp. 2025, Section 1-8-
9 102), which relates to court-appointed special
10 advocates; modifying education and training course
11 standards; modifying background check standards; and
12 providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-8-102, as
15 amended by Section 1, Chapter 310, O.S.L. 2022 (10A O.S. Supp. 2025,
16 Section 1-8-102), is amended to read as follows:

17 Section 1-8-102. A. Any court-appointed special advocate
18 (CASA) available for appointment pursuant to the Oklahoma Children's
19 Code or the Oklahoma Juvenile Code shall complete education and
20 training courses in accordance with ~~national and~~ Oklahoma CASA
standards.

21 B. No court-appointed special advocate shall be assigned a case
22 before:

23 1. Completing a training program in compliance with ~~nationally~~
24 documented Court-Appointed Special Advocate standards.

1 Documentation of training shall be submitted annually by local
2 court-appointed special advocate programs to the Oklahoma Court-
3 Appointed Special Advocate Association; and

4 2. Being approved by the local court-appointed special advocate
5 program, which will include appropriate criminal background checks
6 as provided in subsection C of this section.

7 C. 1. Notwithstanding any other provision of law, each local
8 court-appointed special advocate program shall require for any
9 person making application to become a court-appointed special
10 advocate volunteer or to be employed by the local court-appointed
11 special advocate program:

- 12 a. a child welfare records search conducted by the
13 Department of Human Services, which shall consist of a
14 search of the Child Abuse and Neglect Information
15 System maintained by the Department of Human Services
16 for review by authorized entities,
- 17 b. a criminal history records search conducted by the
18 Oklahoma State Bureau of Investigation, and
- 19 c. any other background check meeting the requirements as
20 set forth in Oklahoma Court-Appointed Special Advocate
21 Association state ~~or national~~ standards for local
22 programs.

23 2. If the prospective court-appointed special advocate
24 volunteer or employee of the local court-appointed special advocate

1 program has lived in Oklahoma for less than one (1) year, a criminal
2 history records search shall also be obtained from the criminal
3 history state repository of the previous state of residence.

4 D. 1. Any person participating in a judicial proceeding as a
5 court-appointed special advocate shall be presumed prima facie to be
6 acting in good faith and in so doing shall be immune from any civil
7 liability that otherwise might be incurred or imposed.

8 2. Any person serving in a management position of a court-
9 appointed special advocate organization, including a member of the
10 Board of Directors acting in good faith, shall be immune from any
11 civil liability or any vicarious liability for the negligence of any
12 court-appointed special advocate organization advocates, managers,
13 or directors.

14 SECTION 2. This act shall become effective November 1, 2026.

15 Passed the House of Representatives the 11th day of March, 2026.

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Presiding Officer of the House
of Representatives

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20 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate